

GENERAL INFORMATION:

Country name: **Mauritius**

Organization or entity **responsible for the preparation of the report: Ministry of Education, Tertiary Education, Science and Technology**

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention¹

Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

→ *the obstacles, whether legal, institutional, political or practical*

→ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol² instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☐ Yes

☒ No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☒ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☒ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- ***The Constitution of Mauritius***
 - ***The Education Act***
 - ***The Equal Opportunity Act***
 - ***The Ombudsperson for Children Act***

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No **Not available**

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.³*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁴ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum
- ☐ Other:

³ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁴ See: Article/Paragraph 1(1).

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of pupils to educational institutions*

There is no discrimination regarding the admission of students in primary, secondary and higher education institutions.

The Education Act makes provision for “all Government schools and all schools in receipt of a regular grant in aid from the Government grants shall be open to pupils of any race or religion”.

➔ *Non-differential treatment, including of foreign nationals resident in your country*

Primary & Secondary

The National Equivalence Committee carry out a recognition/equivalence of qualification awarded by various institutions from different part of the world for the purpose of admission to primary and secondary schools. Education is provided free to foreign nationals residents in Mauritius in primary and secondary institutions.

Tertiary Education

There is non-discriminatory fees applicable to students from SADC countries.

The University of Mauritius (OUM) in particular, has also adopted the following:

- 1. Reduction in tuition fees for taught and research postgraduate programmes**
- 2. Alignment of fees for postgraduate programmes (both taught and research programmes) of international students to fees applicable for local students.**
- 3. Extending payment facilities to international students along the same lines as local students as from January 2020. This measure is aimed at facilitating access to UoM, especially to students from African and India.**

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☒ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁵

- **Education Act: Education is free to all children attending primary and secondary schools (government and grant-aided schools)**
- ***Government has introduced the free tertiary education scheme as from January 2019. It is applicable to students following undergraduate courses on both part time and full-time mode at a public education institution. This measure promotes equity, access and inclusiveness ensuring no youth is left behind due to lack of financial means.***
- ***Enhanced education opportunities are provided to disadvantaged children through scholarships, including scholarships for disabled students.***

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|--|--|
| ☒ Providing financial incentives and fellowships | ☐ Providing auxiliary assistance |
| ☒ Providing positive or affirmative action measures | ☒ Adapting education infrastructure |
| ☒ Ensuring inclusion in mainstream schools for all learners | ☒ Adapting curricula and methods |
| ☒ Training teachers on inclusive education | ☐ Providing language classes to newcomers (e.g. refugees) |
| ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☐ Eliminating administrative barriers to education ⁶ |
| ☐ Providing re-entry programmes for young mothers | ☒ Providing flexible learning pathways |
| ☐ Eliminating all barriers for pregnant girls or young mothers in education | ☒ Valuing diversity in schools |
| ☐ Other: | ☐ Combatting stereotyping and stigmatisation |

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Education is free and compulsory to all from the age of 5 to 16.

⁵ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

⁶ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

According to the Civil Code 1990 the age of marriage is 18

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁷. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

Pre-primary education is not compulsory. Pre-primary education is available for a duration of two years for children aged 3 to 5 years.

☐ Pre-primary education is free of charge for all: Please provide the duration:

Pre-primary is free for children attending public pre-primary schools. However for children enrolled in private fee paying schools, a monthly per capita is paid to these school.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

The Early Childhood Care and Education Authority Act of 2007 makes provision for the promotion of integrated early children education and care policies, strategies and programmes in line with recommendation of international and national institutions and Conventions on the Rights of Children.

The net enrolment rate for children aged 3 to 4 years is nearly 91%.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment: *In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.*

5 to 13 years (Primary)

Compulsory up to 16 years

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

- **Primary education is available free of charge to ALL.**
- **Public transport is provided free of charge to all pupils.**
- **Textbooks are also provided free of cost**
- **No exam fees are applicable for primary education**
- **Free meal to needy students of all grades in specific schools (Zone d’Education prioritaire)**
- **Uniforms provided by parents except for pupils who fall under the Social Register Scheme who are provided monthly allowance**

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

• Please briefly provide information on the reforms taken:

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Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Secondary education is free in Mauritius and covers the whole 7-year cycle (lower, middle and upper secondary education).

Secondary education became free in 1977 by way of a Government decision.

Subsequent decisions taken by different Governments have brought the following:

- (i). Free bus transport for all students***
- (ii). Free textbooks for students at lower secondary level (Grades 7 to 9)***
- (iii). Free books for needy students of all grades***
- (iv). Full (100%) subsidy by Government on international examination fees (Cambridge 'O' and 'A' level)***
- (v). For students on the Social Register of Mauritius, payment of a monthly allowance subject to 90% attendance at school***
- (vi). For students on the Social Register of Mauritius, financial reward for good performance at main examinations***

School uniforms and school materials are also provided to students from families in situation of extreme poverty

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☒ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Education in Mauritius is compulsory from the age of 5 up to the age on 16. Necessary legal provision has been made within the Education Act in 2004.

Compulsory education therefore covers primary schooling (6 years) and the first cycle of secondary education (5 years).

The Gross Enrolment Ratio (11-17 years) for year 2019 stood at 88.4% - statistical survey for 2020 has been delayed due to the Covid-19 school closure.

The remaining percentage concerns mostly students with special education needs who are attending specialised institutions and others who have been enrolled by their parents in some informal educational set up.

The Ministry has set up a mechanism for student tracking to identify children of school-going age who are not attending school. Enquiry and home visits by Educational Social Workers allow to trace such out of school children.

Although the law provides for a fine in case of breach of the section on Compulsory Education, this is usually not applied, the parents being already in dire poverty situation. Where required, referral is made to the Ministry of Social Integration and the Ministry of Gender Equality for support to the families on the condition that their children attend school.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions:

Provisions made in the Employment Rights Act are as follows:

Section 12 Employment of children and young persons

(1) No person shall employ a child for employment or work in any occupation.

(2) No person shall employ, or continue to employ, a young person –

(a) on work which by its nature, or the circumstances in which it is carried out, is likely to jeopardize the health, safety, physical, mental, moral or social development of the young person; or

(b) after being notified in writing by the Permanent Secretary that the kind of work for which the young person is employed is unsuitable for the young person, or will interfere with the young person's education

Moreover, Section 67 Offences provides for a fine and imprisonment for a term not exceeding one year for any person convicted for an offence under this law.

Definitions given under this Act are

“child” means a person under the age of 16

“Permanent Secretary” means the Permanent Secretary of the Ministry responsible for the subject of labour and employment relations

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁸, and target 4.4⁹.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹⁰ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ➔ *grounds prohibited by the Convention/Recommendation*

To cite an example, the University of Mauritius (UOM) is a signatory of the Magna Charta Universitatum and is guided by Values of Respect, Responsibility, Equity, Integrity, Academic Freedom and Institutional Autonomy in all its operations and dealings with its stakeholders.

‘No Discrimination’ clause is also provided at Section 6 of the UoM Act, 1971 as amended, as reproduced hereunder:

“6 No Discrimination

No discrimination on account of nationality, race, caste, religion, place of origin, political opinions, colour, creed or sex shall be shown against any person in determining whether he or she is to –

⁸ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁹ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹⁰ See: Article/Paragraph 1(1).

- (a) *Be appointed to the academic or other staff of the University;*
- (b) *Be registered as a student of the University; or*
- (c) *Graduate from, or hold any advantage or privilege of, the university."*

UoM also has an Equal Opportunity Policy (see link) and abides by the Equal Opportunities Act.

(<https://www.uom.ac.mu/images/FILES/UoMEqualOpportunityPolicy.pdf>)

The Inclusive Learning Centre at the UoM Library is yet another example which is a dedicated space for students with special learning needs.



→ *Non-differential treatment, including of foreign students*

There is non-discriminatory fees applicable to students from SADC countries.

- **The UOM has also adopted the following:**
- **Reduction in tuition fees for taught and research postgraduate programmes**
- **Alignment of fees for postgraduate programmes (both taught and research programmes) of international students to fees applicable for local students.**
- **Extending payment facilities to international students along the same lines as local students as from January 2020. This measure is aimed at facilitating access to UoM, especially to students from African and India.**

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education".

- ☒ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Other:

Government has introduced the free tertiary education scheme as from January 2019. It is applicable to students following undergraduate courses on both part time and full-time mode at a public education institution. This measure promotes equity, access and inclusiveness ensuring no youth is left behind due to lack of financial means.

This scheme apply for payment of all tuition fees and only administration fees are paid by students.

Moreover in the case of the UOM, financial incentives and scholarships are provided to support the inclusion of all learners including the economically and socially marginalized, and people with disabilities.

At UoM, scholarships and financial assistance are provided to students coming from low-income families, students who face unexpected personal difficulties during their studies and disabled students.

For instance, UOM have the “The UoM Students Financial Assistance Fund” and the “The UoM Scholarship Scheme for Disabled Students”. There are also donors from the private sector and parastatal bodies which as part of their Corporate Social Responsibility (CSR) provide scholarships and financial schemes to University needy students.

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

Education at the private higher education institutions are fee paying and are not free. Depending on the courses enrolled for the students need to pay for the fees accordingly.

As highlighted above, undergraduate courses are run free for both full time and part time basis. The post graduate courses, however, are fee paying.

Annually, around Rs 600 M is provided for the implementation of the free tertiary education scheme. With the free tertiary education scheme in place, an increase in enrolment of students has also been noted.

With the setting up of branch campuses in Mauritius by the foreign Universities, courses provided are gradually being diversified. This provides an opportunity for local students to be enrolled in such universities with a relatively lower cost implication. In addition, it has helped in attracting international students.

It is also a fact that many local students do opt for pursuing studies abroad. Around 17% of local students opt to study abroad annually.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth

and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications
- ☒ Other:

- **In the context of the MoA between The University of Mauritius and the Ministry of Civil Service and Administrative Reforms, The Centre for Lifelong Learning (CILL) of the University of Mauritius offers top up programme of studies such as the Human Resource Management (Top-Up) programme which is targeted towards those who already possess a Diploma in Management Studies from the University of Mauritius to upgrade their qualifications to a Degree since 2018.**
- **A civil service college was set up in 2012. Several activities relating to ALE were conducted during the period 2018-2019. Ex. - 6,166 Public Officers have been trained and their development capabilities enhanced through the Capacity Building and Capability Development Programme, customized training courses and E-Learning System. - 7,717 participants followed training in Ministries/Departments (On-Site training) - 986 participants followed training at the Ministry of Civil Service and Administrative Reforms (OSHMS, Ergonomics, Fire Risk Management etc (In-House training)**
- **The Faculty of Agriculture (FoA) of the University of Mauritius has been offering Diploma in Agriculture (Mauritius), Diploma in Agriculture (Rodrigues), Diploma in Forestry (Mauritius), Diploma in Forestry & Fisheries (Rodrigues) for officers of the Ministry of Agro-Industry & Food security and for RRA. All are mature students and most of them are over 50 years. Presently, the Faculty is involved in the training of 75 farmers in Horticulture and Organic farming, in collaboration with the National cooperative College.**
- **In 2018, the Mauritius Port Authority has signed a MoU with the University of Mauritius to serve the training needs and enhance the competencies of professionals in the port sector. The MoU has been reached with a view to running the following projects:**
 - **Certificate in Port Management**
 - **Accreditation of Prior Learning (APL)**

- **Collaboration with other overseas training institutions to build capacity**
 - **Established under the Mauritius Qualifications Authority (MQA) Act 2001, one of the functions of the MQA is “to recognise and validate competencies for the purpose of certification obtained outside the formal education and training systems”. This function is achieved through the implementation of the Recognition of Prior Learning (RPL). RPL is a process of acknowledging prior learning of a person’s skills and knowledge acquired through previous training, work or life experience. In order to develop a national approach to RPL, the MQA has formulated a Policy on RPL. The objective of this Policy is to facilitate access and progression of learners through the RPL within the National Qualifications Framework (NQF). The National qualifications frameworks are used to facilitate recognition of all forms of learning. One of the functions of the Mauritius Qualifications Authority (MQA) is to develop, implement and maintain a National Qualifications Framework (NQF). The NQF is a ten-level instrument to classify qualifications according to specified levels of learning achieved and is based on a set criteria and aims at integrating and coordinating qualifications to improve the transparency, access, progress, comparability and quality of qualifications in relation to the labour market and the public.**
- With dissemination and communication about the benefits of RPL to stakeholders, the involvement of employers in the RPL endeavour was more conclusive and they supported their employees in the process by providing financial support. The response was more felt as there was more engagement from both the candidate and the employer. Such initiatives were tried with private companies amongst others in the Tourism and Construction sectors. Around 635 candidates (project-based) who had been out of the mainstream education and training system have chosen RPL as an alternative route to obtain a qualification in their respective fields. Of all candidates who have been assessed, 65% came out with either a full or partial award.**
- **The Adult Literacy Programme was launched as far back as 1986, by the National Women’s Council, a parastatal body operating under the Ministry of Gender Equality and Family Welfare, with an aim to providing women with the basic skills in reading, writing and numeracy. The Adult Literacy Programme targets women from 15 to 80 years old with no schooling or basic reading readiness. In 2019, a new module ‘English Literacy using IT’ (ELIT) was introduced in the Adult Literacy Programme. Moreover, taking into consideration the paramount importance of the use of IT and of a good knowledge of English Language, the ELIT module makes it possible for women to learn both English and IT simultaneously. There are other NGO’s such as CARITAS which also offers training in life skills management programmes, functional literacy, Adult literacy , Training for community development.**
 - **Established by the Government in 2006 as the National CSR Foundation, which has been transformed into The National Social Inclusion Foundation has as main mandate to undertake programmes and projects for the benefit of individuals and families registered under the Social Register of Mauritius (SRM) and of vulnerable groups focusing on Four(4) dimensions of Social Inclusion, Equity and Sustainable Development. The NSIF adopts a Social Investment model for funding, that is, funds are directed towards actions that achieve the best outcomes for the poor and vulnerable.**

- **The University of Third Age (U3AM), an NGO , set up in 2012 was created with the mission to make an individual a complete personality through the process of ultimate rehabilitation. Several courses are offered for free to people of +55 years old/ retired people.**
- **Distance Education//Online Learning was introduced at the University of Mauritius through the Centre for Distance Learning (1996) and the Virtual Centre for Innovative Learning Technologies (2001). Both centres merged into the Centre for Innovative and Lifelong Learning (CILL) in 2014. The mission statement of CILL is “Coordinating, developing, innovating and promoting the University’s Lifelong Learning activities through the use of distance and flexible modalities.” In this respect, CILL offers at undergraduate/post-graduate levels to working people or those who have not been able to complete a degree (e.g the BSc Educational Technologies (Top Up) targeted towards teachers holding a Teacher’s Diploma. Furthermore, CILL has an MOU with the Mauritius Police since 2011. In this context, Police training consists of 3 programmes, each targeting different cadres (sergeant, inspectorate level and Chief inspector and above) and a fourth training that are meant for police recruits. This is an innovative programme : Police training carried out by police training schools for police recruits has been accredited and students have to top up with two UoM modules to get Certificate level programme. Programmes in collaboration with industry such as Mauritius Export Association (MEXA) include Certificate in Supervisory Textile Management (ESQUEL & CFL), Certificate in Import and Export. For these programmes, UoM offers the programme and MEXA liaises directly with HRDC for refund. The above programmes are tailor made for the client in terms of Content, Mode of delivery, Entry requirements (eg mature students policy, Accreditation of prior learning). In fact, APL was approved in 2019 and it represents a paradigm shift in terms of entry requirement as it allows admitting students with Form 3 (Grade 9) and who possess 15+ years of experience in the desired field.**
- **At the level of the HRDC (Human Resource Development Council), there are several incentives to encourage lifelong learning such as the *RPL Support Scheme*. Under the NTF (National Training Fund), various training incentives are offered to employers in order to allow them to meet part of the training cost of their employees and to support other training initiatives both at enterprise and national levels.**
- **In 2010, the Open University of Mauritius Bill was voted by the Parliament, subsequently, the Open University of Mauritius Act 2010 was finally proclaimed on 12 July 2012. The OuM delivers distance education programmes, offers adult and continuing education using distance education programmes, offer adult and continuing education using distance education methodology and caters for the needs of those willing to gain access to education after having left the conventional system.**
- **The MITD established in 2009 operates under the aegis of the Ministry of Education and Human Resources has developed a plan for increasing access to training, for young adults by the introduction of new courses and also conversion of Pre Vocational Education (PVE) training centres into vocational training centres. MOU’s have also been signed with different international institutions as indicated in the list below for the promotion of training. MITD run training**

programmes for employees with no academic qualifications after conducting Trade Test.

- **Polytechnics Mauritius Ltd (PML) is a body corporate established under the aegis of the Ministry of Education and Human Resources, Tertiary Education and Scientific Research in 2016 with the objective of running training programs to serve the emerging needs of Mauritius for a qualified and skilled human resource at mid-professional level. Upskilling programmes are available.**

- Please elaborate further on the measures taken:

Tertiary:

The Higher Education Institutions do cater for special education needs.

For example, the UOM as a Higher Education Institution and as an Equal Opportunities service provider, provides facilities to disabled students and students with special needs on its campus and has various provisions in its regulations on admissions, examinations and teaching facilities.

1. Admission of Students With Disabilities

All students with disabilities considering whether to apply to the UoM are encouraged to contact the Admissions and Student Records Office (ASRO) to find out about the facilities that may be provided for students with disabilities.

- (a) Offers of seats to study at the UoM are made on academic merit and ranking. However, in case a candidate has declared a physical or other impairment in his/her application form, which may have affected his/her academic performance, the Admissions Eligibility Committee of the University considers each candidate on a case to case basis. The candidate should satisfy the minimum basic entry requirements as well as the Programme requirements. Applicants may be contacted by the ASRO for further information so as to ensure that reasonable adjustments can be put in place by the Faculty/ Centre. Applicants may also be interviewed where appropriate to determine their adjustability to specific Programmes.

- (c) Students with mobility difficulties are strongly advised to visit the University since some physical environment of the UoM may not be fully accessible to such students (e.g. wheelchair users or those who have difficulties with stairs). The ASRO and the Faculty/ Centre must therefore ensure that due consideration is given to such applications. If reasonable adjustments to buildings and procedures cannot be put in place, it is essential that the applicant is informed in a timely manner.

2. Special Examination Arrangements:

- Extra time is allowed (a maximum of 25%);
- There are personal time reminders;
- Examination papers are in alternative formats, e.g. enlarged fonts, braille, coloured paper, electronic copy;

- For students who are prone to fatigue, independent arrangements can be made by Faculties/ Centre so that examinations are spaced with at least one day's rest between them to avoid the effects of physical fatigue linked to their disabilities (request to be supported by Medical Certificate);
- Alternative timing to provide for a late or early start according to individual needs;
- Extra time for printing out answers prepared on a computer.

4. Logistics, Infrastructure, and Protocol/Guidelines

UoM's Main Campus at Réduit:

- (i) Ramps to access the various buildings on Campus
- (ii) Availability of lifts.
- (iii) Toilets for students with special needs
- (iv) Provision is made for the seating of students with special needs at the Ground Floor of the UoM Library.

UoM Branch, Ebene Cybecrcity

In general

- Upon enrolment, a meeting is held with every student having special needs in order to identify their specific constraints and arrangements are made accordingly.
- In general, lectures for students with physical disabilities are only scheduled at ground floor level or at floors that are accessible via lifts.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to "build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all".

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☒ Establishment of minimum norms and standards in education
- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☒ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

The following measures have been taken:

- ***Enactment of a Special Education Needs Authority (SENA)- SENA Act 2018***

The Authority is responsible for:

(a) monitoring and facilitating the implementation of special education needs policies of the Government;

(b) advising the Minister on the formulation of policies and on the criteria for the registration of –

(i) special education needs institutions;

(ii) the teaching and non-teaching staff, and any other resource person, of special education needs institutions;

(c) providing guidelines for the design and development of curriculum for special education needs;

(d) the harmonisation and promotion of programmes and policies for the education and holistic development of persons with special education needs, in line with the Convention on the Rights of the Child and the Convention on the Rights of Persons with Disabilities.

- ***The Norms and Standards for SEN Institutions have been revised in response to the objects of the SENA Act and is currently being finalised at the level of the Ministry.***

The Norms and Standards are key requirements that will serve as guide towards the attainment of an inclusive, equitable and effective education system. This document will also

1. enhance the provision of quality education, effective care, safety and security to learners in SEN Institutions; and

2. provide uniformity in the SEN Institutions with regard to operation, governance, curriculum, student learning outcomes, pedagogical materials and facilities, infrastructure and food and nutrition.

The Norms and Standards document will be supplemented three additional documents namely: Guide for a Code of Ethics for SEN Institutions, A Guide to the Disciplinary Policy for SEN Institutions and Nutritional Chart for SEN Learners).

- ***SENA Regulations***

The forthcoming Special Education Needs Authority (Registration of Special Education Needs Institutions) Regulations would provide inter alia, for -

- (a) *payment of fees and levying of charges;*
- (b) *registration of Special Education Needs Institutions, their teaching/ non-teaching staff and resource persons; and*
- (c) *administration and management of these institutions.*

- **ZEP Programme**

30 schools (27 in Mauritius, one in Rodrigues and 2 in Agalega) from poverty areas, also known as high poverty schools form part of the ZEP/Community school project where a free meal and school materials are offered to the pupils. To further enhance the free meal infrastructure is being put up in 4 pilot ZEP schools for the provision of hot meals. The nutritional benefits of having a balanced meal have been recognized.

In these ZEP schools, teaching and non-teaching staff are paid a motivation allowance and benefit from continuous professional development programmes to adopt learner-centred pedagogies.

The Community School project is funded by the Ministry of Social Integration and Economic Empowerment. Each financial year, 5 ZEP schools are provided financial support to the tune of Rs300,000 each for creating a fortified learning environment (through CPD, infrastructural improvements, setting up of Integrated Units for children with behavioural problems and resources centres for teachers to prepare pedagogical tools).

Digitalization

- **Mauritius has enhanced education provision at Primary level through internet connectivity to secondary schools and implementation of digital tools such as tablets and digital projectors for enhanced learning in classrooms ;**

Scholarships

- **Enhanced education opportunities have been provided for disadvantaged children through scholarships, including scholarships for disabled students.**

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)

- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession (**will be catered for in the forthcoming Norms and Standards document and SENA Regulations**)
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☒ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

Capacity building of Educator/Continuous Profession Development Programmes

Equal Access to promotion (no gender bias)

- Please briefly elaborate further on the measures taken:

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☒ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

- ☒ Curriculum includes human rights education
- ☒ Educational and/or extracurricular activities are organized on human rights education
- ☐ Other:

¹¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

All educational institutions are regulated by the Education Act.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹² explicitly apply to private educational institutions?

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

All fee paying schools are regulated by the Education Act.

The Private Secondary Education Authority act as a regulatory body for private secondary schools (both grant aided and fee paying schools) in Mauritius and Rodrigues.

All tertiary institutions (private and public) are regulated by the Tertiary Education Commission.

The SENA Act 2018 and SENA Regulations 2020 already encompass public and private SEN Institutions.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

☐ Constitutional laws and/or legislation protect the right to education of national minorities

¹²

See: Article/Paragraph 1(1).

- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ Curriculum is adapted to national minority needs
- ☐ Teachers are trained to adapt to national minority needs
- ☐ Other:

Not applicable

- Please provide a brief description of the provisions:

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹³ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁴ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to "ensure equal access to all levels of education and vocational training for the vulnerable", including "children in vulnerable situations", and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

Not applicable

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☐ Inclusion in mainstream education
- ☐ Provision of language courses
- ☐ Specific training for educational staff

¹³ Articles/Paragraphs 1 and 3.

¹⁴ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

- ☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

Not applicable

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

Not applicable

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

Not applicable

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

Not applicable

- ☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

Not applicable

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☒ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other: